

SENATE BILL 698

By Kyle

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 8; Title 43; Title 50 and Title 68, relative to
employment of agricultural employees.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 50, is amended by adding the following
as a new chapter:

50-12-101.

As used in this chapter:

(1) "Adverse action" means a demotion, reassignment to a lower-ranked position or to a position with a lower level of compensation, decrease in compensation level, denial of a promotion, termination of employment, or other decision for employment purposes that adversely affects an agricultural employee;

(2) "Agricultural employee" or "employee":

(A) Means an individual who performs agricultural work for an agricultural employer for valuable consideration; and

(B) Does not include a self-employed independent contractor;

(3) "Agricultural employee's representative" means an individual or entity designated by an agricultural employee in a confidential, sealed filing with a court;

(4) "Agricultural employer" or "employer":

(A) Means an individual or entity that:

(i) Regularly engages the services of one (1) or more employees, or contracts with an individual or entity that recruits, solicits, hires, employs, furnishes, or transports employees; and

(ii) Is engaged in agricultural work; and

(B) Does not include this state or a county, municipality, or other political subdivision of this state, or an entity created by this state or a county, municipality, or other political subdivision of this state;

(5) "Agricultural work" includes farming in all its branches, and, among other things, includes the cultivation and tillage of the soil; dairying; the production, cultivation, growing, and harvesting of an agricultural or horticultural commodity; the raising of livestock or poultry; and any practices performed by a farmer or on a farm that are incident to or in conjunction with the farming operation, including preparation for market, and delivery to storage, market, or carriers for transportation to market;

(6) "Department" means the department of labor and workforce development;

(7) "Key service provider" means a healthcare provider; a community health worker; an education provider; an attorney or other legal advocate; a government official, including a consular representative; a member of the clergy; or another service provider to which an agricultural employee may need access; and

(8) "Whistleblower" means an agricultural employee, or an agricultural employee's representative, who has knowledge of an alleged violation of this chapter and asserts a claim related to the alleged violation.

50-12-102.

(a) An agricultural employer shall not retaliate against an agricultural employee:

(1) Who asserts a right protected under this chapter, including complaining publicly or seeking or asserting the rights, remedies, or penalties provided under this chapter; or

(2) Based on the agricultural employee's immigration status.

(b) There is a rebuttable presumption that an agricultural employer that takes an adverse action against an agricultural employee within ninety (90) days after that agricultural employee has asserted or sought a right, remedy, or penalty provided under this chapter or by another law, or based on the agricultural employee's immigration status, has retaliated against the agricultural employee.

50-12-103.

(a)

(1) An agricultural employee, an individual who has a familial or workplace relationship with the agricultural employee or with whom the agricultural employee exchanges care or support, a whistleblower, or key service provider may assert a claim in the chancery or circuit court having jurisdiction in the county where the alleged violation occurred.

(2) The statute of limitations for filing a claim as described in subdivision (a)(1) is tolled from the date that an agricultural employee asserts a claim with the department until ninety (90) days after the department declines to investigate the claim.

(b)

(1) In addition to the right provided in subsection (a), an aggrieved individual may assert a claim with the department, in accordance with rules

promulgated by the department. The department shall allow a claim to be submitted electronically on the department's website.

(2)

(A) The department may investigate a claim submitted for a violation of this chapter.

(B) The department shall make a determination of whether to investigate a claim within ninety (90) days from the date the claim was received by the department. The department shall notify the complainant, in writing, of the department's decision, and, if the department chooses not to investigate the claim, notify the complainant of the complainant's right to assert a claim in the chancery or circuit court having jurisdiction in the county where the alleged violation occurred, along with the applicable statute of limitations.

(C) If the department chooses to investigate and finds that an agricultural employer violated this chapter, then the department may bring an action in the chancery court of Davidson County on behalf of this state against the agricultural employer that retaliated against:

(i) An agricultural employee;

(ii) An individual who has a familial or workplace relationship with the agricultural employee; or

(iii) An individual with whom the agricultural employee exchanges care or support.

(c) A court that finds that an agricultural employer violated this chapter may:

(1) Order injunctive relief to enjoin the continuance of the violation of this chapter;

(2) Award the plaintiff actual damages or ten thousand dollars (\$10,000), whichever is greater; or

(3) Award court costs and reasonable attorneys' fees.

(d) A party that asserts a claim in accordance with this section and recovers damages shall distribute the damages to the aggrieved individual or agricultural employee.

50-12-104.

An agricultural employer shall pay to an agricultural employee no less than the minimum wage required under 29 U.S.C. § 206.

50-12-105.

(a) An agricultural employer shall allow an agricultural employee to take an uninterrupted and duty-free meal period of at least thirty (30) minutes when the employee's shift exceeds five (5) consecutive hours.

(b)

(1) An employer shall, to the extent practicable, allow an employee to take the meal period described in subsection (a) no sooner than one (1) hour after the start of the employee's shift.

(2) An employer shall allow an employee to consume:

(A) An on-duty meal while performing the employee's duties, if the nature of the business activities or other circumstances of the work make provision of an uninterrupted meal period impractical; and

(B) The entire on-duty meal, without loss of compensation or time for the period during which the agricultural employee consumed the on-duty meal.

(c) In addition to subsections (a) and (b), an employer shall allow an employee to take an uninterrupted and duty-free rest period of at least ten (10) minutes within each four (4) hours of work. This subsection (c) does not apply to a truck driver whose sole and principal duty is to haul livestock or other farm products, including crops or silage, or to an employee operating a combine harvester.

50-12-106.

The department shall promulgate rules to set required minimum overtime pay for agricultural employees that is comparable to the overtime requirements applicable to other types of employees in this state.

50-12-107.

(a) An agricultural employer shall not interfere with an agricultural employee's reasonable access to:

- (1) A key service provider during the time when the employee is not performing compensable work, or during a paid or unpaid meal or rest period; or
- (2) Visitors at the employee's employer-provided housing when the employee is present at the housing.

(b) Notwithstanding this section, an employer may require a visitor who accesses a work site to follow protocols that are applicable to third parties who may access the work site. The employer may require a visitor or third party to follow a protocol designed to:

- (1) Manage biohazards and other risks of contamination;
- (2) Promote food safety; or
- (3) Reduce the risk of injury to, or from, livestock on a farm or ranch, except an open range.

(c) An individual, other than the employee who resides in the employer-provided housing, shall not prohibit, bar, or interfere with, or attempt to prohibit, bar, or interfere with, the access to or egress from the housing of an employee by another individual, either by the erection or maintenance of a physical barrier; physical force or violence, or threat of physical force or violence; or by an order or notice.

50-12-108.

(a)

(1) Except as provided in subdivision (a)(2), an agricultural employer who provides employer-provided housing or transportation for an agricultural employee shall, at least once per week, provide transportation to an employee to a location where the employee can access basic necessities, conduct financial transactions, and meet with key service providers.

(2) An employer who provides employer-provided housing or transportation for an agricultural employee who is actively engaged in the production of livestock on an open range shall provide the transportation described in subdivision (a)(1) not less than one (1) day per three (3) weeks.

(b) Subsection (a) does not:

(1) Limit or restrict an employee's right to travel using the employee's own means of transportation;

(2) Require an employer to violate state or federal law; or

(3) Require an employer to provide the transportation described in subsection (a) to an employee if the employee has access to the employee's own vehicle and the employee is permitted to park the vehicle on the employer's property.

50-12-109.

(a) An agricultural employer shall post written notice of the rights provided under this chapter:

(1) In an easily accessible, conspicuous location on the agricultural employer's premises, including in the agricultural employee's employer-provided housing;

(2) In a place where the employer customarily posts notices to the employer's employees; and

(3) Electronically, including by email and on an intranet or internet website, if the employer customarily communicates with its employees electronically.

(b) The notice required by subsection (a) must be written in the English language, and in a language spoken as the primary language by the majority of the employer's employees.

50-12-110.

(a) The department shall promulgate rules to require an agricultural employer to protect the employer's agricultural employees from heat- or cold-related stress, illnesses, or injuries when the employees work outside in a temperature of:

(1) Thirty-two degrees Fahrenheit (32°F) or lower; or

(2) Eighty degrees Fahrenheit (80°F) or higher.

(b) The department shall set requirements to effectuate subsection (a) in rules based on environmental factors, exposure time, acclimatization, and metabolic demands of a job as set forth in the United States department of health and human services, centers for disease control and prevention national institute for occupational safety and health 2016 revised publication, or the most recent subsequent publication. The rules must, at a minimum, include:

(1) An advisory work schedule based on the temperatures described in subdivisions (a)(1) and (2);

(2) Required additional breaks that must be provided to agricultural employees based on the temperature;

(3) Recommendations for shelters to warm or cool agricultural workers, depending on the temperature; and

(4) Other requirements or recommendations that the department determines, in the department's discretion, are necessary for working in temperatures described in subdivisions (a)(1) and (2).

50-12-111.

(a) An agricultural employer commits the offense of wage theft who hires an agricultural employee and intentionally does not pay the agricultural employee for the services the employee provides, at the minimum wage rate required under the Fair Labor Standards Act (FLSA) (29 U.S.C. § 201 et seq.), title 50, chapter 2, or the employment agreement between the employer and employee, whichever is greater, and at the interval required under the FLSA, title 50, chapter 2, or the employment agreement between the employer and employee, whichever is more frequent.

(b) The offense of wage theft must be graded as theft of services in accordance with § 39-14-105.

50-12-112.

(a) There is created the agricultural work advisory committee. The advisory committee is administratively attached to the department.

(b)

(1) The advisory committee is composed of eight (8) members and must include:

(A) One (1) individual from each grand division of this state, to be appointed by the governor;

(B) Two (2) individuals who are qualified and knowledgeable regarding agricultural work, to be appointed by the commissioner of labor and workforce development;

(C) One (1) individual who is qualified and knowledgeable regarding wages for agricultural work, to be appointed by the speaker of the house of representatives;

(D) One (1) individual who is qualified and knowledgeable regarding working conditions for agricultural work, to be appointed by the speaker of the senate; and

(E) The commissioner of labor and workforce development, or the commissioner's designee, as a nonvoting ex officio member.

(2) In making appointments to the advisory committee, the appointing authorities shall coordinate the appointments to ensure that the advisory committee membership is inclusive and reflects the diversity of this state.

(3) A vacancy on the advisory committee must be filled for the unexpired term by the appointing authority and in such a manner to ensure that the requirements of this section are met.

(4)

(A) Members appointed pursuant to subdivision (b)(1)(A) are appointed for an initial term of two (2) years. Members appointed pursuant to subdivision (b)(1)(B)–(D) are appointed for an initial term of three (3) years. After the initial term, each member serves for a term of four (4) years.

(B) Each member shall hold over after the expiration of the member's term until a successor has been duly appointed and qualified.

(C) Members may be reappointed for additional terms.

(5) Members serve without compensation, but members appointed pursuant to subdivisions (b)(1)(A)–(D) may receive travel expenses in accordance with the comprehensive travel regulations promulgated by the department of finance and administration.

(c) The committee shall study and provide recommendations to the department for:

(1) Appropriate wages for agricultural employees; and

(2) Methods to improve working conditions for agricultural employees.

SECTION 2. The department of labor and workforce development shall promulgate rules to effectuate this act. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 3. For purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect January 1, 2026, the public welfare requiring it, and applies to conduct occurring on or after that date.